

STATE OF NEW YORK

1403--A

2025-2026 Regular Sessions

IN SENATE

January 9, 2025

Introduced by Sens. SANDERS, CLEARE, FAHY, FERNANDEZ, MYRIE, SEPULVEDA
-- read twice and ordered printed, and when printed to be committed to
the Committee on Finance -- committee discharged, bill amended,
ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law and the labor law, in relation to
enacting "Cariol's Law"

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "Cariol's law"
2 or "duty to intervene".

3 § 2. The executive law is amended by adding a new section 839-a to
4 read as follows:

5 § 839-a. Excessive use of force; duty to intervene. 1. Definitions.
6 For the purposes of this section, the following terms shall have the
7 following meanings:

8 (a) "police officer" shall have the same meaning as provided for in
9 subdivision thirty-four of section 1.20 of the criminal procedure law;

10 (b) "peace officer" shall have the same meaning as provided for in
11 section 2.10 of the criminal procedure law;

12 (c) "use of force" shall include, but shall not be limited to:

13 (i) brandishing, pointing, using or discharging a firearm at or in the
14 direction of another person;

15 (ii) using a chokehold or similar restraint that applies pressure to
16 the throat or windpipe of a person in a manner that may hinder breathing
17 or reduce intake of air;

18 (iii) displaying, using or deploying a chemical agent, including, but
19 not limited to, oleoresin capsicum, pepper spray or tear gas;

20 (iv) brandishing, using or deploying an impact weapon, including, but
21 not limited to, a baton or billy club;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (v) brandishing, using or deploying an electronic control weapon,
2 including, but not limited to, an electronic stun gun, flash bomb or
3 long-range acoustic device; or

4 (vi) engaging in conduct which results in the death or serious bodily
5 injury of another person.

6 (d) "objectively reasonable" shall mean a standard used to judge a
7 police officer's use of force which are reasonable based on the totality
8 of the circumstances known to such officer at the time of such use of
9 force;

10 (e) "physical injury" shall have the same meaning as provided for in
11 subdivision nine of section 10.00 of the penal law; and

12 (f) "serious physical injury" shall have the same meaning as provided
13 for in subdivision ten of section 10.00 of the penal law.

14 2. Duty to intervene. An on-duty police officer or on-duty peace offi-
15 cer who is present and observes another police officer or peace officer
16 using physical force that such officer reasonably believes to be clearly
17 excessive or beyond that which is objectively reasonable under the
18 circumstances, shall be required, when such officer has a realistic
19 opportunity to do so safely, to intervene to prevent the use of such
20 excessive force.

21 3. Failure to intervene. (a) A police officer or peace officer who
22 fails to intervene when appropriate may:

23 (i) be held criminally liable for any offense under the penal law for
24 which failure to intervene satisfies every element of such offense, or
25 for any offense resulting from such officer's failure to intervene;

26 (ii) be subject to termination by such officer's employer if such
27 officer:

28 (1) had a realistic opportunity to intervene safely;

29 (2) acted while purporting or pretending to act within the scope and
30 performance of their official duties; and

31 (3) deprived an individual of rights, privileges, or immunities
32 secured by the Constitution or the laws of the United States.

33 (iii) be held civilly liable to any aggrieved party when such officer
34 observes or has reason to know that:

35 (1) excessive force is being used;

36 (2) an individual has been unjustifiably arrested; or

37 (3) any constitutional violation has been committed by a fellow offi-
38 cer.

39 (b) When a police officer or peace officer fails to intervene in an
40 incident which results in death or serious physical injury, such inci-
41 dent shall be referred to the district attorney.

42 (c) The commissioner shall authorize an investigation of any allega-
43 tions of a police officer's failure to intervene. Such officer may be
44 placed on administrative leave during the period of such investigation.
45 Any final disciplinary action shall be subject to arbitration pursuant
46 to article seventy-five of the civil practice law and rules.

47 (d) Police officers or peace officers who falsely report incidents of
48 inappropriate or excessive use of force by a fellow police officer or
49 peace officer may be subject to criminal liability pursuant to section
50 240.60 of the penal law.

51 4. Liability. Notwithstanding any provision of law to the contrary,
52 any police officer found to be civilly liable for excessive force shall
53 be liable for any judgments made against the municipality, state agency
54 or public authority if such judgment is directly connected to such offi-
55 cer's use of excessive force.

5. Reporting. Upon a police officer's or peace officer's observation of the use of physical force by another police officer or peace officer who such officer reasonably believes to be clearly excessive or beyond that which is objectively reasonable under the circumstances, such officer shall file a formal complaint with the chief of such officer's department. Reporting requirements shall apply whether the use of physical force occurred while the offending officer was on or off-duty. Failure to report shall be grounds for discipline, including termination.

§ 3. Subdivision 2 of section 740 of the labor law, as amended by chapter 522 of the laws of 2021, is amended to read as follows:

2. Prohibitions. An employer shall not take any retaliatory action against an employee, whether or not within the scope of the employee's job duties, because such employee does any of the following:

(a) discloses, or threatens to disclose to a supervisor or to a public body an activity, policy or practice of the employer that the employee reasonably believes is in violation of law, rule or regulation or that the employee reasonably believes poses a substantial and specific danger to the public health or safety;

(b) provides information to, or testifies before, any public body conducting an investigation, hearing or inquiry into any such activity, policy or practice by such employer; ~~or~~

(c) objects to, or refuses to participate in any such activity, policy or practice~~[-]~~;

(d) if such employee is a police officer, as such term is defined in subdivision thirty-four of section 1.20 of the criminal procedure law, observes any police officer using physical force against an individual that such police officer reasonably believes to be clearly excessive or beyond that which is objectively reasonable under the circumstances and such police officer intervenes; or

(e) if such employee is a peace officer, as such term is defined in section 2.10 of the criminal procedure law, observes any peace officer using physical force against an individual that such peace officer reasonably believes to be clearly excessive or beyond that which is objectively reasonable under the circumstances and such peace officer intervenes.

§ 4. This act shall take effect immediately.